(1) Applicant's name and post office address.

(2) If a corporation, a certified copy of the articles of incorporation.

(3) If a city or town, evidence of authority of the mayor or other officer who may be authorized to execute such lease.

(4) Description of the land for which the lease is desired, by legal subdivisions if surveyed, or by metes and bounds if unsurveyed.

(d) All applications filed by individuals, associations and corporations must be accompanied by an application service fee of $10 which will not be returnable. No application service fee will be required of a municipality or a corporation which is an instrumentality of the United States, or a State or Territory thereof.

PART 255—TOWN SITES

1. The present text of § 255.11 is designated as paragraph (a) and a new paragraph (b) added, as follows:

§ 255.11 *Filing in land office, in duplicate, of transcript of plat, field notes and statement.* * * *

(b) All filings made in accordance with this section must be accompanied by a service charge of $5 which will not be returnable.

2. The present text of paragraph (b) of § 255.16 is redesignated as paragraph (c) and a new paragraph (b) substituted, as follows:

§ 255.16 *Preemption claims, publishing and posting of proof notices.* * * *

(b) All notices of intention to make proof of preemption claims pursuant to this section must be accompanied by a service charge of $5 which will not be returnable.

PART 258—SPECIAL LAND-USE PERMITS FOR PUBLIC LANDS WITHIN OR OUTSIDE OF GRAZING DISTRICTS

1. Section 258.5 is revised so as to read as follows:

§ 258.5 *Fees.* All applications for special land use permits or renewal thereof, where the applicant is an individual, corporation or association, must be accompanied by an application service fee of $10 which will not be returnable. No charge will be made for applications by agencies of the Federal Government, or agencies of the States and political subdivisions thereof.

2. The present text of § 258.13 is designated as paragraph (a) and a new paragraph (b) added as follows:

§ 258.13 *Assignment of permit.* (a) * * *

(b) All applications for assignment of special land use permits must be accompanied by an application service fee of $10 which will not be returnable.

3. Paragraph (a) of § 258.20 is revised to read as follows:

§ 258.20 *Fees and charges.* (a) All applications for a permit to erect one or more advertising displays on public lands must be accompanied by an application service fee of $10 which will not be returnable.

4. The present text of § 258.22 is designated as paragraph (a) and a new paragraph (b) added, as follows:

§ 258.22 *Renewal of permit.* * * *

(b) All applications for permit renewal made in accordance with this section must be accompanied by an application service fee of $10 which will not be returnable.

(Sec. 501, 65 Stat. 290; 5 U. S. C. 140)

FRED A. SEATON,
Secretary of the Interior.

MAY 13, 1958.

[F. R. Doc. 58-3751; Filed, May 19, 1958; 8:49 a. m.]

Appendix—Public Land Orders

[Public Land Order 1636]

[BLM 044621, 1975986, 68673]

MISSISSIPPI

RESERVING PUBLIC LANDS AS THE HORN ISLAND NATIONAL WILDLIFE REFUGE; REVOKING THE EXECUTIVE ORDER OF APRIL 12, 1906 AND EXECUTIVE ORDER NO. 5562 OF FEBRUARY 20, 1931, ENTIRELY, AND THE EXECUTIVE ORDERS OF AUGUST 30, 1847 AND SEPTEMBER 3, 1900, IN PART

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws nor the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U. S. C. 601-604) and reserved under jurisdiction of the Department of the Interior as the Horn Island National Wildlife Refuge:

ST. STEPHENS MERIDIAN

T. 9 S., R. 6 W.,
Sec. 25, lots 1, 2, and 3;
Sec. 27, lots 5 to 8, inclusive;
Sec. 28, lots 5 to 10, inclusive;
Sec. 29, lots 5 to 12, inclusive;
Sec. 30, lots 11 to 14, inclusive;
Sec. 33, lots 2, 3, and 4;
Sec. 34, lots 8 to 11, inclusive.
T. 9 S., R. 7 W.,
Sec. 18, lot 5;
Sec. 19, lots 8 and 9;
Sec. 22, lots 11 to 18, inclusive;
Sec. 23, lots 5 to 8, inclusive;
Sec. 25, lots 11 to 16, inclusive;
Sec. 26, lots 8 to 14, inclusive;
Sec. 27, lots 2, 3, and 4.
T. 9 S., R. 8 W.,
Sec. 13, lot 1;
Sec. 23, lots 1 to 4, inclusive;
Sec. 24, lots 1 to 8, inclusive.

The areas described aggregate approximately 2,484.23 acres.

2. The Executive order of August 30, 1847, so far as it reserved fractional sections 17, 18, 19, 20, and 21, T. 9 S., R. 7 W., "being the west end of Horn Island," fractional section 31, T. 9 S., R. 5 W., and fractional sections 26, 35, and 36, T. 9 S., R. 6 W., "being the east end of Horn Island," is hereby revoked. The lands were transferred to the control of the Secretary of the Interior for disposition under the act of July 5, 1884, by Executive orders of October 25, 1895 and August 25, 1900.

3. The Executive order of April 12, 1906, reserving sections 23 and 26, T. 9 S., R. 7 W. (307.54 acres), as a target range for the Revenue-Cutter Service is hereby revoked.

4. The Executive order of September 3, 1900, so far as it reserved fractional section 31, T. 9 S., R. 5 W., and fractional section 36, T. 9 S., R. 6 W., east of Pearl River, for lighthouse purposes, is hereby revoked.

5. Executive order No. 5562 of February 20, 1931, reserving lots 1, 2, and 3, sec. 25, T. 9 S., R. 6 W., for lighthouse purposes as an addition to those withdrawn by the Executive order of September 3, 1900, is hereby revoked.

6. The lands described in paragraph 4, and part of sec. 26, T. 9 S., R. 6 W., have been completely eroded by action of the tides. The remaining lands described in paragraphs 2, 3, and 5 of this order, to the extent that they are still public lands, are included in the reservation made by paragraph 1.

HATFIELD CHILSON,
Acting Secretary of the Interior.

MAY 14, 1958.

[F. R. Doc. 58-3738; Filed, May 19, 1958; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 11990; FCC 58-441]

[Rules Amdt. 10-4]

PART 10—PUBLIC SAFETY RADIO SERVICES

MODIFICATION OF EXISTING SERVICES, CREATION OF NEW SERVICES AND EFFECTING OF CHANGES IN AVAILABILITY OF FREQUENCIES

1. *Introduction.* The Commission adopted, April 3, 1957, a Notice of Proposed Rule Making in the above-entitled proceeding. This Notice of Proposed Rule Making was published in the FEDERAL REGISTER of April 16, 1957 (22 F. R. 2367) and ample opportunity was afforded interested persons to submit comments in support of or in opposition to the rule amendments proposed. The time for filing of both original and reply comments in regard to the proposed rule changes has now expired.

A multitude of comments were filed in this proceeding by organizations representing large numbers of users, by individual users, and by other interested parties. Due to this large number of comments, a substantial number of which are voluminous, it is not feasible to discuss the positions of all interested parties in this Report and Order. Nevertheless, every properly filed comment has been considered and the merits thereof given appropriate weight by the Commission in reaching the determinations set forth herein. Many of the comments contain suggestions and proposals which go beyond the scope of this proceeding. Such suggestions and proposals